WLEE MOBILE MONEY

TERM AND CONDITIONS OF USE

1. The Agreement

The use of Wlee Mobile Money Services provided by the Customer shall be subject to acceptance of the terms and conditions as detailed herein below ("Terms and Conditions"). By applying for use of the Wlee Services, the Customer acknowledges that the Customer has read, understood and agrees to be bound by these Terms and Conditions.

2. Definitions

"Account" shall mean your Wlee Account and the record maintained by Wlee of the amount of Credit held by you from time to time in your Mobile Wallet and represented by an equivalent amount of cash held by Wlee on your behalf;

"Agent/s" shall mean the retail agents appointed by Wlee to provide Wlee Services, support the enrollment process of a Customer and facilitate Customer transactions; "Agreement" shall mean these Conditions of Use together with this registration form;

"Mobile App" means the Wlee mobile application available in the App or Play store that customers can use to register, login, and engage in mobile money transactions.

"Bill Payment" shall mean the Transactions wherein the Customer uses the Wlee Mobile Money Services to make payments towards utility bills, merchant payments and other such bill payments as may be allowed by Wlee.

"Charges" shall mean all charges payable under this Agreement; "Customer" shall mean an individual person above the age of eighteen (18) years who is registered to use the Wlee Services;

"Credit" shall mean the electronic money mirrored by the value stored in a bank account(s) and redeemable for cash;

"Merchant" shall mean and include any outlet/ service provider who have been authorized by Wlee to accept payment for goods or services using an Wlee Account;

"Mobile Equipment" means your mobile phone and SIM Card or other equipment which when used together allows access to Wlee Services;

"Network" means the Global System for Mobile Communication operated by Mobile Network Operators in Liberia.

"PIN Number" shall mean a secret password that would enable the Customer to securely access and operate their Account. The PIN Number is also required to be entered by the Customer to complete all transactions;

"Registration Form" means the registration form containing registration details and acceptance of these terms and conditions;

"Transaction/s" shall mean any credit or debit of money balances in the Customer's Wlee Account including but not limited to money transfer payments and receipts, payments for goods and services, utility payments, deposits and withdrawals.

"Wallet(s)" means the either the Liberia Dollars or US Dollars denominated funds held in separate and independent sub-accounts in your Wlee Account.

"Wlee Services" or "Services" or "Wleepay" shall mean the services offered by Wlee for the issue and redemption of Credit and the transfer of funds between Customers on the basis of transfer instructions including the recording of all transactions, verifying and confirming all transactions concluded and updating Customer records;

"Wlee Platform" or "Wlee" shall mean the proprietary mobile money system operated, owned and maintained by Wlee;

"Website" shall mean the website owned, established and maintained by Wlee

3. About Wlee
   3.1. Wlee is a platform operated by Wlee Financial Services LLC ("Wlee") which provides for an affordable, reliable and speedy facility for the transfer of money value from one place to another and from one person to another using the Short Message Service ("SMS") capabilities of mobile phones. Customers of Wlee are not required to have bank accounts to carry out Transactions using the Wlee Platform.
   3.2. Wlee services are available to all members of the public who are mobile phone subscribers of any mobile phone service provider in the Republic of Liberia which accepts Wlee services.
   3.3. The Wlee platform allows mobile phone subscribers who subscribe for the Wlee Services ("Customers") to make cash payments to authorized agents of Wlee ("Agents") in exchange for a credit of electronic value representing the cash paid ("Credit").
   3.4. The Credit purchased is recorded in an account registered by Wlee in the name of the Customer (a "Customer Account") and is then available for use using the SMS or mobile app functionality on that Customer's mobile phone. The Credit is redeemable for cash from any Agent at any location within Liberia and/or may be transferred to any other Customer or may be used to purchase pre-paid airtime or goods and services from merchants authorized to accept Wlee Services. All cash payments received by Wlee Agents are held under a bank account maintained by an independent Liberian incorporated trust company on trust for Customers on their behalf and to their order and are recorded as a credit in each Customers Accounts. Upon affecting a Transaction both the Customer and the Agent will receive an SMS and Mobile App confirmation of the Transaction to be effected, and only upon receipt of such confirmation will the Agent affect the Transaction.

3.5. The Customer shall not assign or transfer his/her Account or the Services or otherwise grant any third party a legal or equitable interest over it.

3.6. The Customer grants express authority to Wlee for carrying out Transactions and instructions authenticated by providing the PIN Number.

3.7. The Customer shall be the sole and exclusive owner of the PIN Number and the Customer shall accept sole responsibility for use, confidentiality, and protection of the PIN Number.

3.8. The Customer shall not disclose the PIN Number to any other person and shall not respond to any unauthorized SMS/ e-mail/ phone call in which the PIN Number is asked for. Wlee shall, in no manner whatsoever, be held responsible or liable, if the Customer incurs any loss as a result of the PIN Number being disclosed/ shared by the Customer with any unauthorized persons or in any other manner whereby the security of the PIN Number is compromised.

3.9. The Customer must ensure the availability of sufficient funds (including service Charges thereon, if any) in the Account before initiating any Transaction.

3.10. The Customer shall not use the Services for any purpose that might be construed as contrary or repugnant to any applicable law, public policy or for any purpose that is contrary to Wlee's policy or might prejudice the goodwill of Wlee Services.

3.11. A Customer will be required to accept the terms and conditions of use for the Wlee services ("the Conditions of Use"), which acceptance will constitute a legally binding Agreement between the Customer and Wlee Financial Services LLC. The Conditions of Use are available from all Agents, Wlee Headquarters and from Wlee Website, the terms of which prevail over this Summary. All prospective Customers are advised to read and fully understand the same prior to subscribing for Wlee Services.

3.12. Any person may register for a Customer Account with any of Wlee's Agents or via Self-Registration. Upon registration the Agent or Mobile App may require all or any of the following information and documentation: a. The Customer's ID Card Number or Passport. b. The Customer's mobile number. c. Where there is no formal ID, an alternative type of documents acceptable for their identification can be used, for example allowing a third party (such as clergymen, village/clan head/chief, etc. with acceptable means of identity) to act as referees.

3.13. All Agents are no more than independent outlets authorized by Wlee to provide Wlee Services and no agency relationship exists between Wlee and the Agents and Wlee bears no responsibility or liability for any default or negligence on the part of the Agents in providing the Wlee Services.

3.14. Wlee may decline the Customer to register on the Wlee platform, if the customer does not provide sufficient proof of identity and where Wlee at its absolute discretion declines to register the Customer.

4. Registration

4.1. A Customer will be required to accept the terms and conditions of use for the Wlee services ("the Conditions of Use"), which acceptance will constitute a legally binding Agreement between the Customer and Wlee Financial Services LLC. The Conditions of Use are available from all Agents, Wlee Headquarters and from the Wlee Website, the terms of which prevail

over this Summary. All prospective Customers are advised to read and fully understand the same prior to subscribing for Wlee Services.

4.2. Any person may register for a Customer Account with any of Wlee's Agents or via the Wlee Mobile App. Upon registration the Agent and the Mobile App may require all or any of the following information and documentation:

4.2.1. The Customer's ID Card Number or Passport

4.2.2. The Customer's mobile number

4.2.3. Where there is no formal ID, an alternative type of documents acceptable for their identification can be used, for example allowing a third party (such as clergymen, village/clan head/chief, etc. with acceptable means of identity) to act as referees.

4.3. All Agents are no more than independent outlets authorized by Wlee to provide Wlee Services and no agency relationship exists between Wlee and the Agents and Wlee bears no responsibility or liability for any default or negligence on the part of the Agents in providing the Wlee Services.

4.4. Wlee may decline the Customer to register on the Wlee platform, if the customer does not provide sufficient proof of identity and where Wlee at its absolute discretion declines to register the Customer.

5. Transactions

5.1. Upon registration and activation of a Customer Account, the customer will be granted access to the Wlee Services menu accessible via the mobile app or USSD. Once a Customer's Account is credited, he/shee will be able to carry out the following transactions ("the Transactions"):-

5.1.1. Cash in his Credit by using the App or sending an SMS Message to an Agent via Wlee instructing the Agent to pay out specified cash sums to him. The Customer's Account will be debited by the amount of cash withdrawn.

5.1.2. Transfer Credit to another Customer using the mobile app or by sending an SMS Message to such other Customer via Wlee specifying the amount to be transferred. Upon a Customer receiving such mobile app notification or SMS message he/she will be able to cash in or use the Credit transferred into his account.

5.1.3. Purchase Pre-paid Airtime using the mobile app or by SMS.

5.1.4. Purchase Goods and Services from Merchants by the transmission of instructions using the mobile app or by SMS via Wlee in settlement for the Goods and Services purchased.

5.1.5. A Customer may purchase additional Credit for his/her Account by making further cash payments to an Agent. A Customer Account may also be increased by receipt of a transfer of Credit from another Customer by way of a transfer instruction given via the mobile app or SMS on their mobile phone.

5.2. All Debit Transactions from your Account will be effected by Transfer Instructions authorized with the PIN Number which you choose when you register, or by such other method we may prescribe from time to time. If using an Agent, proof of ID will BE required before any Transaction can be effected and the ID presented will be recorded by the Agent on each Transaction.

5.3. Your Account will be credited when you purchase Credit by making Payments or when Credit is transferred to your Account from another Customer and all such amounts will be held by Wlee to your order.

5.4. You may not effect any Transactions from your Account in the event that you do not have sufficient Credit in your Account to meet the value of the Transaction and Charges applicable thereto.

5.5. The Wlee platform will verify and confirm all Transactions affected from your Account Mobile app or by SMS to you. The Wlee platform records will be taken as correct unless the contrary is proved.

6. Account and Wallets

6.1. Customer shall open the Account with such minimum amount as may be specified by Wlee in the welcome kit and as set out on the Website from time to time.

6.2. The Customer shall maintain such minimum balance in the Account as may be specified from time to time.

6.3. The Customer shall cease to have access to the Account through any access channel e.g. Mobile App and Unstructured Supplementary Service Data ("USSD"). in the event the mobile number as provided by the Customer during registration is no longer operational.

6.4. The Transaction and the Transaction limits for the operation of the Account shall be set at the sole discretion of Wlee and Transaction limits shall be communicated to the Customers in a manner deemed fit and proper by Wlee.

6.5. The Customer confirms and acknowledges that she/he would receive statement of his/her Account only upon his request and Wlee may charge a fee for providing physical statement to Customer as per charges mentioned in schedule of charges provided to the Customer at the time of opening of Account.

6.6. Wlee reserves the right to close or freeze the Account and the Services pertaining to the same, after due notice to the Customers for reasons which may include, but not limited to, the following:

6.6.1. In case any of the documents furnished towards identity and address proof are found to be fake / forged / defective;

6.6.2. Improper conduct of the Account in terms of volume / type of transactions/any other reasons;

6.6.3. For unsatisfactory conduct of the Account.

6.7. Upon closure of the Account for any of the reasons specified above or otherwise, the Customer shall take steps to collect the balance amount in the Account.

7. Privacy Policy

7.1. Wlee recognizes the importance of protecting the privacy of all information provided by Customers.

7.2. Wlee collects personally identifiable information that we use to profile Customers and administer individual Accounts, update Wlee databases, and provide User support.

7.3. Save as provided hereunder, Wlee will not share your personal information with unauthorized persons and adequate safeguards have been put in place to prevent unauthorized access and to ensure confidentiality of your personal information.

7.4. You acknowledge that by using the Wlee Services, some of your personal information will be passed on to any person whom you receive Credit from, or send Credit to and will be available to any third party involved in the operation of the service including without limitation, Wlee Agents and the vendors of the Wlee transfer technology platform. You hereby authorize Wlee to share with, provide or disclose to third parties with which you have separately contracted or with which you intend to contract (and have informed Wlee of this intention in writing or electronically through the Wlee platform), your personal information including any Transaction data, information pertaining to you or your Wlee Account, or your usage of Wlee Products and Services provided that the authority given to Wlee to disclose information to such third parties (not being a law enforcement, investigative or regulatory authority) pursuant to this clause may be withdrawn at any time.

7.5. You acknowledge that Wlee may verify your identity information through publicly available and/or restricted government databases in order to comply with regulatory requirements.

7.6. You accept that Wlee shall have the right to monitor your account usage and may disclose personal information to local law enforcement or investigative agencies or any competent regulatory or governmental agencies to assist in the prevention, detection or prosecution of money laundering activities, fraud or other criminal activities;

8. Agents

8.1. Wlee Agents are appointed by Wlee across the Republic of Liberia to provide Wlee services and are mandated to register new customers for Wlee, and to hold a stock of cash ready to exchange for Credit to be credited to such Customers Account and pay out cash sums to Customers in accordance with instructions relayed by Customers. Wlee Agents receive a commission payable by the Wlee platform based on the transactions performed.

9. Fees

9.1. You are responsible for the payment of all applicable fees. Wlee publishes fees payable in information pamphlets, daily newspapers, Agent Outlets and on the Wlee website. Wlee's Customer Care department will be on hand to assist you with the fee schedule if you are uncertain about the applicable fee.

9.2. All fees are deducted at source and are subject to change at any time at Wlee's sole discretion.

9.3. Fees payable on each Transaction will be deducted from your Account at the completion of each Transaction. Your new balance on completion of the Transaction shall be notified to you by SMS or via the Mobile App.

9.4. Except as may otherwise be notified, fees are inclusive of all applicable taxes including Value Added Tax at the prevailing rate.

10. Intellectual Property

10.1. All intellectual property rights in the Wlee Service including the Wlee trademark are the property of Wlee and/or its affiliates. Any unauthorized reproduction, modification, distribution

or republication of Wlee materials or intellectual property, without the express prior written consent of Wlee and/or its affiliates is strictly prohibited.

11. Indemnity
    11.1. The Customer shall be liable to Wlee for losses, expenses or damages and agree to indemnify, defend and hold harmless Wlee and /or the Wlee Agent harmless from any and all claims, losses, damages, liabilities, costs and expenses, including and without limitation legal fees and expenses arising out of or related to its use or misuse of Wlee Services, violation of these terms and conditions or any breach of any representations, warranties and covenants made by the Customer.
    11.2. The Customer shall indemnify Wlee against any fraud or any loss or damage suffered by Wlee due to the failure on the part of the Customer to communicate correct permanent or communication address and/or failure on the part of the Customer to communicate any change/alteration in the said permanent or communication address.
    11.3. Wlee shall not responsible for any loss arising from any failure, malfunction, or delay in any cellphone Networks, Wlee platform, cellphones, the Internet or terminals or any of its supporting or shared networks, resulting from circumstances beyond our reasonable control.

12. Additional Terms
    12.1. Wlee makes no express or implied warranty, guarantee, representation or undertaking whatsoever regarding the services, which are not expressly mentioned herein.
    12.2. Wlee shall not be responsible for any acts or omissions of any third-party including Agents/distributors/retailers/Merchants etc. regarding services which are not expressly authorized by Wlee.
    12.3. Wlee shall not be liable to the Customer or any other person for any incorrect information provided by the Customer to Wlee pertaining to Wlee Services, any delays, loss of business, profit, revenue or goodwill, anticipated savings, damages, fees costs, expense, etc. or for any indirect or consequential loss, howsoever arising, on account of unavailability/usage of Wlee Services or otherwise.
    12.4. Wlee shall not be responsible in any way for the products or for any site from any Merchant Establishment from which they are purchased, or for any charges, taxes or other duties relating to the Transactions. The Merchant Establishments are solely responsible for all information in relation to the products, for the products themselves and their supply and sale to the Customer.
    12.5. Any dispute with or complaint against any Merchant Establishment must be directly resolved by the Customer with the Merchant Establishment. It is clarified that Wlee shall not be responsible or be liable for any deficiency in goods and/or services purchased using an Wlee Account. The Customer is instructed to satisfy itself regarding the quality, quantity and fitness of any good and/or service before purchasing the same.
    12.6. The Terms and Conditions herein shall be subject to the notifications/guidelines issued by the Central Bank of Liberia, from time to time.

13. Modification of Terms

13.1. Wlee shall at their sole discretion alter, modify or amend these Terms and Conditions from time to time and the same shall be updated and displayed by Wlee on its Websites.

13.2. Wlee may modify, terminate and/or suspend Wlee Services anytime with or without prior notice, due to any changes in internal policies, rules, regulations and laws set by relevant authorities/regulators.

14. Dissolution

14.1. If any part of these Terms and Conditions are adjudged illegal or inoperable for any reason, the same shall be severed from the remainder of this document and only that portion of this document that is specifically adjudged illegal or inoperable shall cease to govern the relationship between Wlee and the Customer.

15. Lien and Set-Off

15.1. Wlee shall have the paramount right of set-off and lien, irrespective of any other lien or charge, present as well as future, on all the balances lying in the Account of the Customer, to the extent of all amounts payable by the Customer arising as a result of any of Wlee services extended to and/or used by the Customer or as a result of any other facilities that may be granted by Wlee to the Customer.

16. Force Majeure

16.1. Wlee shall inform the Customer of the existence of a Force Majeure Event and shall consult together to find a mutually acceptable solution. “Force Majeure Event” means any event due to any cause beyond the reasonable control of Wlee, including, without limitation, unavailability of any communication system, breach or virus in the processes or payment mechanism, sabotage, fire, flood, explosion, acts of God, civil commotion, strikes or industrial action of any kind, riots, insurrection, war, acts of government, computer hacking, unauthorized access to computer data and storage device, computer crashes, breach of security and encryption, etc.

16.2. Wlee shall not be liable for any failure to perform any of its obligations under these terms or the specific terms and conditions if the performance is prevented, hindered or delayed by a Force Majeure Event and in such case its obligations shall be suspended for so long as the Force Majeure Event continues.

17. Inactive Account

17.1. Wlee may classify an Account as dormant if there are no Customer-induced transactions for 6 (six) months in that account.

18. Termination

18.1. The Customer may request for closure of the Wlee Account and Services thereof any time by giving a written notice of at least 15 (fifteen) working days to Wlee. The termination shall take effect on the completion of the fifteenth day. The user will remain responsible for any Transactions made through the Account until the time of such termination.

19. Dispute Resolution

19.1. You may contact Wlee Customer Care line for any disputes, claims or to report Account discrepancies. Wlee shall handle the report in accordance with its standard complaint handling procedures.

19.2. In certain circumstances Wlee in conjunction with participating merchants may provide for dispute resolution mechanisms. You agree to abide by such mechanisms as may be advised by Wlee or the participating merchants from time to time.

19.3. Any dispute arising out of or in connection with this Agreement that is not resolved by Wlee Customer Care shall be referred to Liberian Courts to be arbitrated and determined by the Courts.

19.4. To the extent permissible by Law, the determination of the Court shall be final, conclusive and binding upon the parties hereto.

19.5. Nothing in this section shall be deemed to exclude any legally recognized dispute resolution body from receiving, hearing and determining the dispute.

19.6. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Liberia.

20. Data Disclosure and Retention

20.1. You hereby expressly consent and authorize Wlee to disclose any Transaction data or information pertaining to your Account to any law enforcement, investigative or regulatory authority or any competent Anti-Money Laundering authority for the purposes of any genuine enquiry or investigation or to any third party to which you have separately, either in writing or electronically through the Wlee platform or otherwise, authorized Wlee to disclose Transaction data provided that any consent given to Wlee to disclose information to any third party (not being a law enforcement, investigative or regulatory authority, pursuant to this clause may be withdrawn at any time.

20.2. You acknowledge that where your Account is determined by a competent judicial authority as containing proceeds of any criminal or money laundering activities, Wlee may be required by law to surrender funds in your account to any statutory fund created for the purpose of recovering the proceeds of crime.

20.3. You acknowledge that Wlee may retain your Transaction data for a period of up to seven (7) years or as may be required by any law or regulation.

21. Notifications

21.1. Notices in respect of the Account, the Services and facilities in connection with the Account may be given by Wlee either through mobile app notification, email, SMS or posting a letter to the Customer's address. Wlee may also give any notice by posting the notice on their Website and the same will be deemed to have been received by the Customer upon its publication on the Website.

21.2. All notices in connection with the Services or the Account by the Customer to Wlee shall be in writing and shall be deemed to be received by Wlee only upon acknowledgment of receipt of the same in writing by Wlee as the case may be.